

Rachna Pareek vs Pramil Shrikant Purohit And Anr on 25 November, 2011

IN THE HIGH COURT OF JUDICATURE FOR RAJASTHAN
BENCH AT JAIPUR
O R D E R
D.B. SPECIAL APPEAL WRIT NO.2187/2011
IN
S.B. CIVIL WRIT PETITION NO.15431/2011

RACHNA PAREEK
Vs.
PRAMIL SHRIKANT PUROHIT & ANR.

DATE:25.11.2011

HON'BLE MR. JUSTICE NARENDRA KUMAR JAIN-I
HON'BLE MRS.JUSTICE NISHA GUPTA

Mr. Tanveer Ahmed, for the appellant.

Heard the learned counsel for appellant.

2. Petitioner/appellant preferred S.B. Civil Writ Petition No.15431/2011 before the Single Bench with a prayer that by issuing an appropriate writ, order or direction, the Family Court No.1, Jaipur City, Jaipur may be directed to decide the Application No.282/2011, titled as Rachna Pareek Vs. Pramil Shrikant Purohit, pending before it on next date or in alternate by conducting the proceedings on day to day basis.

3. Learned Single Bench vide its order dated 11.11.2011, dismissed the writ petition observing that writ petition has been filed within a period of 60 days of the service on the respondent, there is no unnecessary delay in trial of the petition, therefore, no such direction can be issued in the writ petition. However, it has been observed that it is expected from the learned Judge of the Family Court to expedite the trial and dispose of the divorce petition, filed by petitioner, in the spirit of Section 21-B of the Act. Being aggrieved with the same, present intra Court appeal has been preferred.

4. Learned counsel for appellant submitted before us that appellant has a right of speedy trial of her matrimonial dispute in view of Section 21-B of the 1955 Act, therefore, the concerned Family Court can be directed to expedite the matrimonial dispute within a time bound programme.

5. We have considered the submissions of the learned counsel for appellant.
6. The present application for divorce was filed by appellant on 04.04.2011, service of divorce petition on respondent was effected on 15.09.2011, proceedings of Family Court show that matter was referred for reconciliation and reconciliation proceedings failed on 01.11.2011, subsequent proceedings are not on record, therefore, it can not be presumed that there is any delay on the part of respondent or the concerned Court. However, looking to all the facts and circumstances of the case, particularly Section 21-B of the Hindu Marriage Act, 1955, we are of the view that a suitable direction can be issued to the concerned Court for early disposal of the case.
7. After considering all the facts and circumstances of the case, we direct the Family Court No.1, Jaipur City, Jaipur to decide Application No.282/2011, titled as Rachna Pareek Vs. Pramil Shrikant Purohit, as soon as possible, but not later than a period of six months from today.
8. With the aforesaid observation and direction, the special appeal as well as stay application, both, are disposed off.
9. Although, our direction is in accordance with Section 21-B of the Hindu Marriage Act, but since order has been passed ex-parte, without issuing notice to respondent No.1, therefore, we grant liberty to respondent No.1 to move an application for modification of the order, if he feels so aggrieved by it.
10. Registry is directed to send a copy of this order for compliance to the concerned Court.

(NISHA GUPTA), J. (NARENDRA KUMAR JAIN-I), J.

/KKC/